



SPONSOR: Rep. Lynn & Rep. Ortega & Sen. Hoffner & Sen. Pinkney
Reps. K. Johnson, Lambert, Morrison, Phillips, Snyder-
Hall, Wilson-Anton, Neal, Berry

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 44

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO MIGRANT EDUCATION.

1 WHEREAS, in addition to being moral and ethical, the education of migrant children is essential to the
2 agricultural industry in Delaware,

3 NOW, THEREFORE:

4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

5 Section 1. Amend Part 1, Title 14 of the Delaware Code by making deletions as shown by strike through and
6 insertions as shown by underline as follows:

7 Chapter 48. Migrant Education Program.

8 § 4801. Purposes.

9 The purposes of this chapter are:

10 (1) To support high-quality and comprehensive educational programs and services during the school year and,
11 as applicable, during summer or intersession periods, that address the unique educational needs of migratory children.

12 (2) To ensure that migratory children receive full and appropriate opportunities to meet the same challenging
13 State academic standards that all children are expected to meet.

14 (3) To help migratory children overcome educational disruption, cultural and language barriers, social
15 isolation, various health-related problems, and other factors that inhibit the ability of such children to succeed in
16 school.

17 (4) To help migratory children benefit from State and local systemic reforms.

18 § 4802. Funding.

19 The Department must ensure that migratory children's educational needs are met. If federal funding is insufficient
20 to meet the needs of migratory education, the Department shall identify, transfer, or request the appropriation of
21 supplemental funding from the State or other sources so as to ensure no interruption in services under this chapter.

22 § 4803. Services.

23 The services provided under this program must include all services that were provided by this State on January 19,
24 2025, or that were required to be provided in accordance with the Elementary and Secondary Education Act (ESEA), 20
25 U.S.C. § 6301 et seq. as of January 19, 2025.
26 § 4804. Regulations.
27 (a) The Department may promulgate regulations to implement the provisions of this chapter.

SYNOPSIS

This Act requires the State to have a migrant education program to ensure that migrant children's educational needs are met. The program must provide the same services that were provided or were required to be provided under the Elementary and Secondary Education Act on January 19, 2025. If federal funding is insufficient to meet the needs of migratory education, the Delaware Department of Education must identify, transfer, or request the appropriation of supplemental funding from the State or other sources to ensure no interruption in services.